

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Souad Moussawi	Team: Team # 2	CCRB Case #: 200807995	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 05/29/2008 6:00 PM	Location of Incident: § 87(2)(b) Street, between McDonald Playground and § 87(2)(b)		18 Mo. SOL 11/29/2009		Precinct: 62
Date/Time CV Reported Fri, 05/30/2008 7:22 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/05/2008 1:15 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eduard Nogol	17002	931851	062 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Nicholas Morin	20911	940488	062 PCT
2. SGT Jeremy Berson	00406	918752	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Eduard Nogol	Force: At § 87(2)(b) Street in Brooklyn, PO Edward Nogol used physical force against § 87(2)(b)	A . Exonerated
B . POM Eduard Nogol	Abuse: At § 87(2)(b) Street in Brooklyn, PO Eduard Nogol threatened § 87(2)(b) with the use of force.	B . Exonerated
C . POM Eduard Nogol	Discourtesy: En route to the 62nd Precinct stationhouse, PO Eduard Nogol spoke obscenely and/or rudely to § 87(2)(b)	C . Unsubstantiated
D . POM Eduard Nogol	Abuse: At the 62nd Precinct stationhouse, PO Eduard Nogol threatened § 87(2)(b) with the use of force.	D . Unfounded

Synopsis

§ 87(2)(b) filed the following complaint with IAB on May 30, 2008 under log # 08-24187. The complaint was referred to the CCRB on June 5, 2008. § 87(2)(b) did not witness the incident. On May 29, 2008, at approximately 6:00 PM, § 87(2)(b), § 87(2)(b)'s daughter, and her friends were stopped by PO Eduard Nogol and PO Nicholas Morin at § 87(2)(b) Street in Brooklyn, because one of her friends kicked a fence. § 87(2)(b) attempted to explain what she had witnessed to PO Nogol and PO Morin. As § 87(2)(b) was speaking to the officers, PO Nogol grabbed her right arm and gripped it tightly (**allegation A**). PO Nogol then removed his pepper spray from his belt, shook the can, and told § 87(2)(b) "I'm going to spray you with mace" (**allegation B**). § 87(2)(b) may have struck PO Nogol's arm with her arms as he tried to grab her. PO Nogol arrested § 87(2)(b) for striking his arm transported her to the 62nd Precinct stationhouse. En route to the precinct, § 87(2)(b) asked the officers if she could call her mother. PO Nogol replied, "No. I might want to send your ass to the Bronx. You got to respect the fucking police officers" (**allegation C**). At the stationhouse, § 87(2)(b) was brought to a room occupied by § 87(2)(b) an unidentified sergeant, and Officer Nogol. In this room, PO Nogol told § 87(2)(b) "If I have to punch her (referring to § 87(2)(b) in the face to calm her down, I'll punch her in the face" (**allegation D**). § 87(2)(b) was subsequently release to her mother, § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that allegation A be Exonerated.

§ 87(2)(g)

It is therefore recommended that allegation B be closed as Exonerated.

§ 87(2)(g)

It is therefore recommended that allegation C be Unsubstantiated.

§ 87(2)(g)

It is therefore determined that allegation D be closed as Unfounded.

§ 87(2)(g)

Summary of Complaint

Statement to Medical Personnel

§ 87(2)(a) PBH §18(6)

CCRB Statement

§ 87(2)(b) is a § 87(2)(b) black female. § 87(2)(b). On May 29, 2008, at approximately 1:53PM, § 87(2)(b) was walking with her friends on Avenue S, in Brooklyn. The friends she was with were § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) (The last names of § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) are unknown) The group met another friend named § 87(2)(b), who was riding his bike in the opposite direction. § 87(2)(b) ran into a white picket fence, belonging to a house at § 87(2)(b) Street. (The investigation has determined that the address of the incident is § 87(2)(b) Street.) § 87(2)(b) attempted to avoid the bicycle and ended up hitting the white fence, leaving a black shoe print on it.

The owner of the house at § 87(2)(b) Street was seated in his parked vehicle and observed the incident. He exited his vehicle and accused § 87(2)(b) of kicking the fence, and informed the youths that he was going to call the authorities. The youths soon left the scene but later returned. § 87(2)(b) § 87(2)(b)

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) walked back to the scene of the incident, which was one block away, to provide the officers with an account of the incident.

At the scene, PO Nicholas Morin and PO Eduard Nogol accused § 87(2)(b) of kicking the fence. § 87(2)(b) obtained Officer's Nogol's name by observing his badge). § 87(2)(b) interjected and informed the officers that § 87(2)(b) did not kick the fence. PO Nogol said, "I don't care about a bike!" § 87(2)(b) then walked over towards § 87(2)(b) who was several feet away, standing near the fence. PO Nogol asked § 87(2)(b) for her name and age. § 87(2)(b) complied and provided her information. PO Nogol then ordered § 87(2)(b) to stand next to him. § 87(2)(b) complied. At the time, all of § 87(2)(b)'s friends were standing near the fence. As § 87(2)(b) took a few steps forward PO Nogol attempted to grab her several times. PO Nogol grabbed her by the neck of her jacket the first time. PO Nogol then attempted to grab § 87(2)(b) by her arms, but § 87(2)(b) stepped back and flailed her arms. Officer Nogol then grabbed § 87(2)(b) three times on the right arm, holding a tight grip. § 87(2)(b) sustained swelling and bruising to her right arm. As PO Nogol was holding her, § 87(2)(b) told him, "Get the fuck off me!" and started moving her shoulders. PO Nogol responded, "I'm going to send you to the Bronx." PO Nogol then told § 87(2)(b) that she needed special attention and that he would institutionalize her. PO Nogol pulled out a can of pepper spray from his belt, shook the can, and told § 87(2)(b) "I'm going to spray you with mace!" § 87(2)(b) promptly moved away from PO Nogol and leaned her back on the fence. At that time, PO Morin was speaking to § 87(2)(b) who was approximately ten feet away from her. § 87(2)(b) is uncertain whether § 87(2)(b) and PO Morin heard PO Nogol's comment or if they saw him use physical force against her.

Subsequently PO Nogol informed § 87(2)(b) that he was going to arrest her because she hit him. § 87(2)(g) § 87(2)(b) was placed in the patrol car. § 87(2)(b), § 87(2)(b)'s mother, arrived at the scene and briefly spoke with PO Nogol who informed § 87(2)(b) that § 87(2)(b) smacked him in his arm and used profanity towards him and PO Morin.

§ 87(2)(b) was subsequently transported to the 62nd Precinct stationhouse by PO Nogol and PO Morin. In the vehicle, § 87(2)(b) asked the officers if she could call her mother. PO Nogol replied, "No. I might want to send your ass to the Bronx. You got to respect the fucking police officers. You disrespected me. You hit my arm and didn't get arrested. I'm going to put you away for how long as I want."

At the stationhouse, § 87(2)(b) was brought to a room occupied by § 87(2)(b) "Sergeant Rebenowitz," and PO Nogol. § 87(2)(b)'s father obtained Sergeant's Rebenowitz's name when he called the precinct on the following day. Sergeant Rebenowitz was not present at the scene. PO Nogol told § 87(2)(b) "If I have to punch her (referring to § 87(2)(b) in the face to calm her down, I'll punch her in the face." § 87(2)(b) did not respond. § 87(2)(b) was subsequently released to her mother. § 87(2)(b) sustained swelling and bruising to her right forearm. However, she is uncertain how she obtained the injuries. § 87(2)(b) obtained medical treatment on § 87(2)(b), from § 87(2)(b). At the hospital, she was provided with medication to relieve the pain in her arm.

Results of Investigation

Civilian Interviews

§ 87(2)(b) the mother of § 87(2)(b) is a § 87(2)(b). § 87(2)(b) was interviewed at the CCRB on October 3, 2008.

On May 29, 2008, at approximately 6:00 PM, § 87(2)(b) was at § 87(2)(b)'s school because of a dance concert § 87(2)(b) was participating in. § 87(2)(b) was told by a security guard from § 87(2)(b)'s school had been detained by police officers outside of the school. When § 87(2)(b) arrived, she observed § 87(2)(b) handcuffed, in the back of a police car. § 87(2)(b) spoke to PO Eduard Nogol who was standing by the patrol car. PO Nogol said that § 87(2)(b) had attacked him and that she would be taken to the 62nd Precinct stationhouse. § 87(2)(b) followed them to the 62nd Precinct.

At the precinct, § 87(2)(b) was kept alone in a room for about an hour. Later, § 87(2)(b) was allowed in the room with her. PO Nogol and PO Nicholas Morin were also in this room. § 87(2)(b)

§ 87(2)(b) PO Nogol and PO Morin discussed the incident together in this room for about fifteen minutes. § 87(2)(b) told her daughter not to say anything. § 87(2)(b) was crying the whole time. PO Nogol told § 87(2)(b) that he could charge § 87(2)(b) with assault. PO Nogol then said that he wanted § 87(2)(b) to apologize to him and she did. § 87(2)(b) stated that her daughter was agreeing with everything PO Nogol said about her actions during the incident. § 87(2)(b) stated that she knew her daughter hadn't done what PO Nogol was suggesting she had and that he was making § 87(2)(b) lie to satisfy his needs. § 87(2)(b) did not say anything because she did not want to make things worse. PO Nogol then explained to § 87(2)(b) that considering her behavior, he could lock her up, put her away and it would take forty-eight hours for a doctor to come and psychologically evaluate her. PO Nogol and PO Morin stated that § 87(2)(b) would now have a "record". § 87(2)(b) did not allege any discourtesies or threats of force in her testimony.

Attempt to Contact Witnesses

§ 87(2)(b) provided the names of four friends who witnessed the incident occurring at § 87(2)(b) Street in Brooklyn. The four friends are § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b). § 87(2)(b) also provided the phone numbers for § 87(2)(b) and § 87(2)(b). The undersigned investigator attempted to contact § 87(2)(b) via telephone, five times between November 21, 2008 and December 9, 2008. All five times the undersigned investigator left a detailed message for § 87(2)(b). To date, § 87(2)(b) has not contacted the CCRB. The number provided for § 87(2)(b) was the wrong number.

In attempts to contact these witnesses, Lexis Nexis searches were conducted. The searches were negative for § 87(2)(b), § 87(2)(b) and § 87(2)(b). The searches revealed a possible address for § 87(2)(b). On January 5, 2009, a first please call letter was sent to § 87(2)(b). On January 12, 2009, a final please call letter was sent to § 87(2)(b). To date, § 87(2)(b) has not contacted the undersigned investigator and the letters sent to him have been returned- "Not deliverable as addressed-return to sender".

Through the Sprint, the telephone number of § 87(2)(b) was retrieved. § 87(2)(b) called 911 in regard to the incident. The undersigned investigator contacted § 87(2)(b) via telephone. § 87(2)(b) refused to provide a statement at the CCRB but agreed to send a notarized letter to the CCRB detailing his account of the incident. On the telephone, § 87(2)(b) stated that PO Nogol and PO Morin were helpful to him and he did not observe them engaging in misconduct. On December 10, 2008, the undersigned investigator sent § 87(2)(b) a letter detailing the questions that needed to be answered in the letter. To date, § 87(2)(b) has not sent a notarized letter regarding the incident to the CCRB. Because this letter will not affect the allegations, the case is being closed without § 87(2)(b)'s letter.

Identification of Officers Interviewed

§ 87(2)(b) identified PO Eduard Nogol by reading his name from his badge. The 62nd Precinct roll call, for tour 3, on May 29, 2008 indicates that PO Nogol was working with PO Nicholas Morin.

Officer Statements

PO Eduard Nogol (Subject Officer)

PO Eduard Nogol is a § 87(2)(b) white male. § 87(2)(b). PO Nogol was interviewed at the CCRB on October 29, 2008. On May 29, 2008, PO Nogol worked from 3:00 PM to 11:35 PM. He was assigned to sector patrol and worked with PO Nicholas Morin. They were uniformed and in marked vehicle #2485. PO Nogol had the following entries in his memo book regarding the incident. "At 17:27 there was a call for a 39 criminal mischief at the address of § 87(2)(b) Street. 17:50, one under from location. Transport one female juvenile to 62 Precinct § 87(2)(b). At time and place of occurrence, juvenile did refuse a/o's lawful order by slamming shoulder into PBC fence causing no damage to the property, but confronting a/o, getting in my face and stating, 'You cannot tell me what to do. You cannot touch me.' I am § 87(2)(b) and proceeded to slap a/o with her right hand and struck a/o in the left shoulder, causing no injury or complaint of pain. A/o instructed juvenile to put her hands behind her back which she refused to and proceeded to resist arrest by flailing arms wildly. A/o repeatedly asked to stop resisting and female refused at which time a/o did display pepper OC spray but did not discharge the

OC spray and did finally handcuff juvenile after numerous events prior to arrival of additional units. Juvenile placed in RMP, verified by Sergeant Salmon. At 18:16 hours, juvenile's mother was on scene and notified, which was § 87(2)(b). She lives at § 87(2)(b) and did an RMP check with no visible narcotics or contraband found. The odometer reading was 12162."

PO Nogol had been originally called regarding a criminal mischief incident in progress. He arrived at the scene with PO Morin and parked adjacent to the house. PO Nogol spoke to § 87(2)(b) identified as § 87(2)(b) who said that a group of black males had come by his fence and one of them kicked it. § 87(2)(b) came out to confront the males and they left. When PO Nogol arrived, the males were still gone. As he spoke to § 87(2)(b) the males came back. § 87(2)(b)'s wife was also present at the scene. § 87(2)(b) pointed at the group of three males and the male who kicked his fence, § 87(2)(b). PO Nogol and PO Morin went over to approach § 87(2)(b) and speak to him. PO Morin spoke to § 87(2)(b). Upon doing so, § 87(2)(b) took her shoulder and threw it into the fence causing the fence to rock. PO Nogol walked closer to § 87(2)(b) and asked her to get off the fence several times. § 87(2)(b) refused. PO Nogol then approached § 87(2)(b) in order to remove her from the fence. He grabbed her by her upper arm and § 87(2)(b) pulled her arm out of PO Nogol's hand and said, "You can't touch me, § 87(2)(b)." PO Nogol used minimal force or enough force to remove her from the fence without causing injury. The original group enlarged to approximately eight youths. PO Nogol told § 87(2)(b) that she had to get off of the fence and § 87(2)(b) began flailing her arms, causing a disturbance and acting unruly. PO Nogol repeatedly asked § 87(2)(b) to calm down. However, she refused to calm down. § 87(2)(b) then ran into the street and PO Nogol grabbed her to stop her from getting hit. § 87(2)(b) hit PO Nogol on his arm, causing no injury. PO Nogol then told § 87(2)(b) that she was under arrest. PO Nogol attempted to handcuff § 87(2)(b) and she refused arrest. She pulled her arms away, flailed them and refused orders to stop resisting. PO Nogol described the flailing of the arms as similar to an airplane propeller. PO Nogol called an additional unit and then displayed his OC spray. He kept it at his side and shook it. At this point, the threat was diminished and PO Nogol managed to get § 87(2)(b) under control. PO Nogol handcuffed § 87(2)(b) and placed her in the back of the patrol vehicle. § 87(2)(b)'s friends were about three feet from § 87(2)(b) and PO Nogol during the incident. § 87(2)(b) and his wife were sic to eight feet away.

§ 87(2)(b) caused a scene and caused passers-by to stop and watch the incident. § 87(2)(b)'s mother, § 87(2)(b) arrived at the scene and PO Nogol explained to her what had happened. PO Nogol told § 87(2)(b)'s mother that she would be able to pick up her daughter from the stationhouse. § 87(2)(b) arrived at the stationhouse where she met in the juvenile room with PO Nogol, PO Morin and Sergeant Jeremy Berson. § 87(2)(b) and § 87(2)(b) both apologized. PO Nogol did not threaten to punch § 87(2)(b) in her face. PO Nogol did not say to § 87(2)(b) "You got to respect the fucking police officers." No other officers made these statements. § 87(2)(b) was then released to § 87(2)(b). PO Nogol completed a juvenile report regarding the incident with § 87(2)(b).

PO Nicholas Morin (Witness Officer)

PO Nicholas Morin is a § 87(2)(b) white male. § 87(2)(b). PO Morin was interviewed at the CCRB on October 14, 2008. On May 29, 2008, PO Morin worked from 3:00 PM to 11:35 PM. He was assigned to a routine patrol and was working with PO Nogol. They were both uniformed and in a marked patrol car # 1309. PO Morin had the following entries in his memo book. "At TPO 18:51, juvenile refused officer's orders by slamming shoulders into fence causing no damage to the property, but then confronted officer saying, 'you cannot tell me what to do. Do not touch me.' Proceeded to slap a/o in the left arm causing no pain. A/o instructed juvenile to place hands behind back, which she refused, and proceeded to resist arrest by flailing arms wildly. OC spray was displayed but not discharged. Arrestee was finally handcuffed after repeated refusals before additional units arrived. Arrest was verified by Sergeant 'Segor'.

On May 29, 2008, PO Morin and PO Nogol responded to a call regarding a "criminal mischief job" at § 87(2)(b). § 87(2)(b) told PO Morin and his partner, PO Nogol that a group of youths walking by had kicked his fence. The fence was white and there was a black imprint of a shoe on it. As PO Morin and PO Nogol were talking to § 87(2)(b) he pointed to six youths that had kicked his fence. The six youths were down the block. The officers waved the youths over to inquire about the incident. At this point, PO Morin

and PO Nogol were standing by the patrol car, which was parked in front of § 87(2)(b)'s house. They were approximately four feet away from each other and four feet away from the youths. One of the youths, § 87(2)(b) stated that he had kicked the fence by accident. PO Morin pulled § 87(2)(b) aside and PO Nogol watched the remaining youths. PO Morin asked § 87(2)(b) about the incident and § 87(2)(b) interrupted and said "He didn't do anything. It was by accident." PO Morin described § 87(2)(b) as a thin black female with glasses about § 87(2)(b). PO Nogol then interjected stating "Listen, he's not talking to you. He's talking to this guy over here." § 87(2)(b) then rolled her eyes, said "whatever" and slammed her shoulder into the fence. PO Nogol then told § 87(2)(b) "I just told you not to touch this fence." § 87(2)(b) told PO Nogol that he cannot tell her what to do and PO Nogol approached her. He grabbed her by her wrist and told her to get away from the fence. As soon as PO Nogol grabbed § 87(2)(b) by the arm, § 87(2)(b) said, "You can't touch me." She began to flail her arms wildly and slapped PO Nogol in the arm causing him no pain. PO Nogol said "Listen. Get away from the fence." § 87(2)(b) continued to flail her arms wildly. PO Nogol grabbed § 87(2)(b) by the arms again and instructed her to place her arms behind her back. § 87(2)(b) broke free of PO Nogol's grip and PO Nogol pulled out his pepper spray and said "Don't make me use this." PO Morin he believed PO Nogol had the authority to use the spray considering § 87(2)(b)'s behavior but he was not going to. PO Nogol put the pepper spray away, placed § 87(2)(b) under arrest and in the patrol car. PO Morin and PO Nogol handcuffed § 87(2)(b) together. § 87(2)(b) resisted the arrest. The incident in front of the house lasted approximately 35 minutes.

Once they were by the patrol vehicle, § 87(2)(b)'s mother arrived and spoke to the officers. PO Nogol and PO Morin explained to § 87(2)(b) what had happened and told her that she could pick her daughter up from the 62nd Precinct. The sergeant arrived, verified the incident and left. PO Morin and PO Nogol drove § 87(2)(b) to the precinct. En route to the stationhouse, § 87(2)(b) was crying hysterically. She said that she had done nothing wrong. PO Nogol told § 87(2)(b) to keep her mouth shut because that is what got her in trouble in the first place. When they arrived to the precinct, § 87(2)(b) was placed in a juvenile room. § 87(2)(b)'s mother arrived to the precinct and was apologetic. She was allowed to enter the room where her daughter was placed. In this room she spoke to PO Nogol, PO Morin and the desk sergeant (PO Morin could not remember who this sergeant was). § 87(2)(b)'s mother said that her daughter's mouth gets her in trouble. § 87(2)(b) apologized to PO Nogol. PO Morin did not hear anyone, including himself, threaten to punch § 87(2)(b) in her face. A juvenile report was completed and § 87(2)(b) was released to her mother. The incident at the stationhouse lasted approximately 25 minutes.

Sergeant Jeremy Berson (Witness Officer)

Sergeant Jeremy Berson was interviewed at the CCRB on December 9, 2008. On May 29, 2008, SGT Berson worked alone from 12:30 PM to 11:45 PM. He was assigned to Critical Response Vehicle in Manhattan on 31st Street and 1st Avenue. Sergeant Berson was not present for the incident at the 62nd Precinct. Sergeant Berson's memo-book for May 29, 2008 indicates that he was in Manhattan at the time of the incident.

Medical Records

§ 87(2)(a) PBH §18(6)

Police Documents

Sprint

The Sprint indicates that § 87(2)(b) called 911 on May 29, 2008 at approximately 2:00 PM, to report that a juvenile had kicked his fence. The Sprint provided a telephone number for § 87(2)(b) (Encl. 3)

Roll Call

The 62nd Precinct roll call, for tour 3, on May 29, 2008 indicates that PO Nogol and PO Morin were working together (Encl. 9C-E).

Civilian CCRB History

This is the first complaint on file for § 87(2)(b) (Encl. 3).

Officer CCRB History

PO Eduard Nogol

In his six-year tenure, PO Nogol has had no prior substantiated allegations (Encl. 2A).

Criminal Conviction History

§ 87(2)(b)

Conclusions and Recommendations

Subject Officer Identification

§ 87(2)(b) identified PO Nogol by reading his name from his badge during the incident. § 87(2)(b) alleged that in front of § 87(2)(b) Street in Brooklyn, PO Nogol grabbed her right arm, gripped it tightly and threatened to pepper-spray her. En route to the 62nd Precinct stationhouse, PO Nogol told her, “I might want to send your ass to the Bronx. You got to respect the fucking police officers.” Finally, § 87(2)(b) alleged that at the 62nd Precinct Station house, PO Nogol told § 87(2)(b) “If I have to punch her (referring to § 87(2)(b) in the face to calm her down, I’ll punch her in the face.” § 87(2)(g)

Undisputed Facts

It is not disputed that one of § 87(2)(b) s friends hit the fence of the house at § 87(2)(b) Street in Brooklyn. PO Nogol and PO Morin responded to a 911 call placed by § 87(2)(b) regarding the kicked fence. § 87(2)(b) flailed her arms during her interaction with PO Nogol and PO Morin. PO Nogol displayed his pepper spray can and shook it after § 87(2)(b) flailed her arms at him and struck him. It is undisputed that PO Nogol firmly gripped § 87(2)(b) s arms.

Disputed Facts

§ 87(2)(g)

Assessment of the Evidence

According to PO Nogol, he attempted to grab § 87(2)(b) when she was hitting the fence and to stop her from getting hit by a car when she ran into the street. PO Nogol stated that he used minimal force or enough force to remove § 87(2)(b) from the fence without causing injury. § 87(2)(g)

§ 87(2)(b) denied striking the fence prior to PO Nogol grabbing her, § 87(2)(g)

§ 87(2)(b) stated that she leaned on the fence during the incident, § 87(2)(g)

§ 87(2)(g)

Regarding the allegation that § 87(2)(b) alleged that PO Nogol threatened to use his pepper spray against her, PO Nogol stated that he did threaten to use his pepper spray against § 87(2)(b) § 87(2)(g)

§ 87(2)(b) alleged that PO Nogol spoke discourteously to her. PO Nogol denied using any discourteous language toward § 87(2)(b) and PO Morin stated that he did not hear PO Nogol use profanity toward § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

Regarding the allegation that PO Nogol threatened to punch § 87(2)(b) at the 62nd Precinct stationhouse, PO Nogol denied making such a threat and PO Morin stated that he did not hear PO Nogol threaten to punch § 87(2)(b) § 87(2)(g)

Allegation A: At § 87(2)(b) Street in Brooklyn, PO Edward Nogol used physical force against

§ 87(2)(b)

§ 87(2)(g)

Patrol Guide Procedure 203-11 indicates that the amount of force necessary to overcome resistance should be used to affect an arrest or take emotionally disturbed person into custody. Patrol Guide Procedure 216-05 indicates that if such person is dangerous to himself or others, necessary force may be used to prevent serious physical injury or death. § 87(2)(g)

It is therefore recommended that allegation A be Exonerated.

Allegation B) At § 87(2)(b) Street in Brooklyn, PO Eduard Nogol threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that PO Nogol threatened to use his pepper spray against her. PO Nogol stated that he did threaten to use his pepper spray against § 87(2)(b) Patrol Guide Procedure 203-11 indicates that all members of the service at the scene of a police incident must use minimum necessary force and employ non-lethal alternatives, as appropriate. Additionally, Patrol Guide Procedure 212-95 indicates that O.C. pepper spray may be used when a member reasonably believes it is necessary to effect an arrest of a resisting suspect, for self-defense or defense of another from unlawful force, or to take a resisting emotionally disturbed person into custody. § 87(2)(g)

It is therefore recommended that allegation B be Exonerated.

Allegation C) En route to the 62nd Precinct stationhouse, PO Eduard Nogol spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that allegation C be Unsubstantiated.

Allegation D) At the 62nd Precinct Station House, PO Eduard Nogol threatened § 87(2)(b) with the use of force.

§ 87(2)(g)

It is therefore determined that allegation D be closed as Unfounded.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: